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Loudoun County School Board, Student Behavior and Accountability Committee, Monday, September 23, 2024

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Place	Loudoun County Public Schools / School Board meeting (see BoardDocs / LCPS-TV)
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- Official meeting video (Vimeo / LCPS-TV): https://player.vimeo.com/video/1012482151?rel=0
- BoardDocs (School Board): https://go.boarddocs.com/vsba/loudoun/Board.nsf/Public

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-21. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:00:00] Seeing as that it is now 4:30, I am calling this meeting of the Student Behavior and Accountability Committee to order. We have no one signed up for public comment, and so we'll move on, if that's okay with everyone, to the third item on the agenda, approval of the minutes from August 26th.

[00:00:30] Has everyone on the committee been able to read them? Any changes or clarifications we need? If so, I would like to hear a motion to approve the minutes as they are written. So I give a motion to approve the minutes as written.

[00:00:51] Is there a second? Second. The minutes have been moved and seconded to be approved. All in favor say aye. Aye. Aye. Those opposed, seeing no opposition, we will accept the motion as stated and the minutes are approved.

[00:01:15] moving on to information items policy 8230 appeals and hearing miss scanlon yes thank you we are bringing to you today recommended revisions to policy 8230 which will include a recommended revision actually to the title of the policy to procedures for student disciplinary hearings to the school board this of course is the policy that governs when a student or parent parent can appeal to either SBAC or the full board and how those appeals will progress.

[00:01:54] While the red line would reveal a lot of changes, most, the vast majority of those changes were made for clarity and precision of language and also to ensure that the words used did align with the Code of Virginia.

[00:02:09] That said, there were some substantive changes to the policy that I would like to highlight you and then I would be happy to take any questions that you have so the first substantive change that I would highlight is actually in lines two to three this revised policy explicitly names SBAC your committee as the three member committee which will consider student disciplinary appeals this is in accordance with policy 2310 committees of the school board previously the policy

[00:02:47] referenced a three-member committee of the board, but didn't explicitly note that SBAC is that committee. Moving on to lines 4 through 5, as required by the Code of Virginia, in addition to allowing for an appeal of a long-term suspension and expulsion recommendation, the revised policy also provides for an appeal to SBAC of any exclusion or reassignment decision. The prior policy did not explicitly note that exclusion and reassignment decisions could be appealed

[00:03:26] to SBAC, but the code requires that appeal, so we have been doing those appeals even though they weren't explicitly noted in the policy, so that is something that's just meant to better align us with the Code of Virginia. Further, we chose the word reassignment to allow an appeal of any reassignment decision.

[00:03:50] That would include an appeal of a reassignment decision to a comprehensive school, a different comprehensive school, as well as an appeal to an alternative education setting. The code only requires that we provide an appeal of a reassignment if that reassignment is to an alternative education setting.

[00:04:13] But staff is recommending that we also afford an appeal of a reassignment to a different comprehensive school, just because that is a significant decision were it to occur, and it would be reasonable to permit a student or a parent, in our view, to appeal that decision.

[00:04:29] Lines 7 through 9, the revised policy limits the scope of SBAC's authority to affirming, modifying, or annulling the sanction.

[00:04:46] The revised policy does not permit SBAC to modify or annul the finding that the student violated the rules. So what would be at play would not be did the student violate the rules, but was that sanction appropriate given the violation.

[00:05:08] The reason that we are recommending that change is, first, that does align us with the Code of Virginia. The Code of Virginia permits parents or students to appeal sanctions. It does not explicitly permit an appeal of the finding itself that the rules were violated.

[00:05:26] So that's the first rationale. Secondly, the finding was made typically by the assistant principal. It was affirmed by the principal. It was affirmed, again, by the hearing officer, who is a highly trained, impartial representative of the division superintendent.

[00:05:47] And so by the time a case appears before SBAC, that decision has been affirmed. the finding that the student violated the rules has been affirmed at least twice, if not three times, including through an impartial hearings process.

[00:06:03] As such, staff does not believe that it would be necessary to revisit the finding. The third reason that we are recommending that this change occur is that were you to consider an appeal of a decision that was made under Title IX, The federal regulations implementing Title IX would not permit you to even consider the finding.

[00:06:32] You would, however, have the authority to modify, affirm, or annul the sanction. So since you absolutely cannot, under those federal regulations with a Title IX case, modify or annul the finding, staff believes that having two different processes for different types of cases would be confusing and not best practice moving on then to lines 88 through 89

[00:07:09] the revised policy does state that only division counsel would be present with s back during your deliberations so when s back has a hearing both sides are presented the parties exit the room and you deliberate on what the appropriate decision is, this policy would provide that the only person permitted in the room during your deliberations would be division counsel.

[00:07:39] The current policy does provide for the director of OSA to be part of those deliberations, but given that the director of OSA is, in a sense, a party to the decision, there could be an appearance of impropriety for the director to be with you during deliberations, which is why we recommend that change.

[00:08:05] Finally, in lines 143 through 144, the revised policy makes it clear that if there is an appeal of SBAC's decision to the full board, that the full board would consider that appeal on the written record unless the chair of the board opts to schedule a hearing before the full board.

[00:08:33] So appeals can only go beyond SBAC to the full board if your decision is not unanimous. If you make a unanimous decision as a committee, then that is the final decision on the part of the school system.

[00:08:49] But if your decision was two to one against what the family or student wishes, the family does have one more appeal to the full board. The Code of Virginia only provides the right to appeal to the full board on the written record, and we recommend that that's what we afford our families unless there is an exigent circumstance that would leave the chair to say there should be a hearing.

[00:09:19] And that is simply because there are statutory timelines by which those decisions have to be made, and it would be logistically very difficult to meet those timelines if we were scheduling a hearing that had to occur before the full board with all of the various parties that have to be in attendance that include concludes my summary of the substantive changes and I would be happy to answer any questions

[00:09:45] that you have and would you like to do a motion to move this forward as a to public comment I will move that this revised policy and revised name of the

[00:10:19] policy be moved forward for public comment I second the motion has been properly presented and seconded all in favor of the motion say aye aye those opposed with no opposition this motion is passing three to zero thank you can you tell me public comment

[00:10:52] is that how does that work yes sure so this the document the redlined version and the clean copy will be posted for the public to review they will have a timeline for providing any comments questions concerns within the timeline they can post that online that information will then come to me I will review that you it will also come to you I may decide for example that wow you

[00:11:25] that's a great point maybe that's not as clear and so the public comment might inform or lead me to make some revisions to the policy because before it comes back to you as an action item and then certainly when it comes back to you again you will be able to ask any questions that might have come to your mind as a result of the public comment or to make any amendments um to the policy that you think are appropriate as a result of the public comment so with the public comment it wouldn't give any other committee of the school board an

[00:12:01] opportunity to give input unless they did it as an individual that is correct it does go to certain our policies do go to certain advisory committees yeah such as SIAC for example so when it goes to public comment it is also sent to

[00:12:17] to certain advisory committees okay thank you very much happy to be here too as the first reading of an information item of updated changes to student technology acceptable use policy which is policy 8650 this policy was just

[00:12:57] approved in November but with the recent changes due to policy 86 55 student personal device usage we just have some minor changes to this policy to bring those into alignment so hopefully these are pretty straightforward so this is substantive change is removing section F which is available which is at the set line 77 of the red line version which references bring your own technology pretty much that entire section is now covered by student personal device use policy and this comp this conflicts with that policy so the recommendation from council is just to remove it completely and then we did

[00:13:33] cross-reference policy 8655 at the bottom of this policy the second steps substantive change is the addition of the lines in line 72 all students are expected to use technology responsibly and ethically ensuring their actions do not cause harm to others or to the school community to use the use of any device application or method that violates these guidelines test manipulates or bypass the school division security measures is strictly prohibited that language is being added twofold one there's been a proliferation of IT devices that can manipulate or interfere with with systems I don't want to get

[00:14:10] into too many details but students so we want to make it clear that you're not to do that on-prem and bring some sort of hacking network intrusion device in to our network and second we do have some students who have been ethically working to ethically hack systems and see what that to see if they find vulnerabilities the concern there is they need to get DDI they need to get DDI permission before they start that so that any ethical hacking resembles non-ethical hacking unless we know about it so we've had a couple instances of kids not doing bad things but we just want to make it clear don't you're not

[00:14:48] to do this unless you have expressed permission from us so those are the substantive changes happy to take any questions again this policy is by state code must be reviewed every two years so it'll be back before you know it and we'll be talking about it again so any questions please let me know I have a question we do this does work around the personal devices that we need for medication correct all of those are covered in policy 86 55 correct so that would be explicitly allowed per that policy that was approved in June do we

[00:15:28] want to add a cross-reference yeah there it is okay that I'm sorry for that is one of the additions we had because a policy didn't exist the last time this policy was reviewed so we did add that cross-reference okay thank you who determines that timeline that is posted for feedback there is a standard operating procedure for feedback posting so after this is read tonight we will post it for feedback on the

SPS website and through let's talk and we will receive that feedback and then it will also go through this advisory committees

[00:16:07] that it needs to go to but the goal of collecting that feedback and we'll bring all that back when it's an action item at the next SPAC committee meeting okay but 9:24 to 10:08 is the period correct it's posted for two weeks two weeks yes that standard okay is there a motion to this student technology acceptable

[00:16:42] behavior responsible use policy and move it forward to action after it goes through the committees is that the correct one public comment right okay thank you is there a motion to do that I make the motion to move it to public

[00:17:03] comment I second the motion has been approved and seconded properly all in favor say aye aye all opposed nay seeing no opposition we are going to move this forward for public comment thank you very much the next item is presentation

[00:17:42] on student substance use intervention and response you'd like to go ahead with okay thank you I'm very happy to have with me today mr. Darren Madison who is the supervisor of student assistance services and what we are going to do today mr. Madison is going to review for you the interventions and supports that are available to our students when there is a substance use violation or in fact even when they come forward without a violation and seek such intervention or

[00:18:18] support Mr. Madison will also review various education and outreach efforts with the community and then I'm gonna come in and review for you what the Code of Virginia has to say about student substance violations that occur on school property at school sponsored activities review with you what our own policy has to say and then highlight for you the revisions that were made to regulation 8240 which is our substance regulation in particular the substantive

[00:18:54] changes that were made in August thank you miss Ganlin thank you I'm pleased to be here tonight with the SPAC committee that's Miss Ganlin indicated I'm a supervisor for student assistance services so I directly supervise our student assistant specialists also known as SAS or SAS's I also supervise our attendance officers and also our support all of our attendance division wide on our attendance initiative and also I directly supervise our restorative

[00:19:30] practices team so this is one of the teams I supervise we have SAS's and all of our base in our secondary schools and our student assistant specialists are master level trained mental health professionals as a minimum they have to have five years of experience in mental health and substance abuse of training or experience so a lot of our SASS's that are on our unified mental health teams which we have unified mental health teams in all of our schools which is made up of the counselor or school psychologist or nurse our SASS's tend

[00:20:05] to be the more seasoned experienced clinicians on the team the majority of our SASS's is not required but it's preferred at their they'd be licensed clinicians so the majority of them are licensed clinical social workers licensed professional counselors are licensed substance abuse therapists we can go to the next slide please so in addition to being part of a unified mental health team our counselors are I'm sorry SAS is provide consultation to our school

[00:20:40] administrators to community members and it will connect parents and community mentors to resources when we look at our student support of services that our SAS's are doing on a regular basis we

provide prevention presentations from 6th 7th 8th 9th and 10th grade is not there we provide the 10th grade presentations and the 11th and 12th grade presentations are optional so the the 6th through pretty much 10th grade presentations our SAS's instruct and teach towards the SOL so all of our presentations are done in the health and PE classes so those

[00:21:19] presentations students cannot opt out those are mandatory presentations our SAS's are doing in addition our SAS's are also supporting all the other mental health initiatives that go into the school so other presentations are signs of suicide presentation or bullying presentations our SAS's are co-facilitating those presentations they are performing threat assessments suicide screenings so our SAS's are in addition to doing their their own SAS work to doing all the mental health initiatives in the school oh sorry go

[00:21:56] back to this thank you with parent permission our statuses can provide counseling support to our students they can provide a formal assessment and that assessment will give the family an idea of if you're if your student is on the path of developing substance use disorder whether it's low moderate or high and they can go under one of our services so we provide individual counseling and group services as the school system falls under what they call

[00:22:31] 42 CFR Part 2 program so when students go into our SAS services whether it's a counseling group or cycle education for individual counseling that student has confidentiality with that SAS is similar to a therapist would have in the community so you know if there's a safety issue then the SAS will break confidentiality with you know reporting that to a parent or school Administrator. Interventions, these are interventions in response to our 8240 violations so for example if there's a nicotine violation mandatory part of our

[00:23:06] policy regulation that they receive nicotine education same with drugs and alcohol they're going to receive the substance use class that our SAS's are teaching. However these classes are also available for all students so we also have parents that will volunteer voluntarily place their students into these these classes especially if they know that they have some risk factors they're involved a lot of our students that we work with sometimes don't have they haven't been violated for a substance use violation but they have risk factors so for example we we have a children of addiction group that we

[00:23:46] provide for it for children that have parents that may be dealing with a substance use disorder so we provide support for them we also provider in terms of community referrals and consultations our SAS as well act as case managers and perform like a warm handoff to services for parents when needed next slide please in regard to our outreach and education our communication every year are we have our annual mental health and wellness conference we have our next one coming up here in in January I believe January

[00:24:22] 26 out make sure I get that right date but that is a conference where we have hundreds of vendors come out is free for the community they we connect families with services we also have seminars and presentations free to the community come out and get educational mental health and substance use information our vaping awareness presentations we do in community for parents a care solace is a service that is web-based for all of our families free of cost if they need a

[00:24:56] say a service they're looking for counseling for anxiety for example our one of our SAS's or unified mental health members could could direct a family toward care solace and that care solace will connect that family looking at their insurance looking at what what type of service they need and connecting with a therapist in the community our parent guidance and mental health service series that is

also a web internet based series where parents can go on to the it's called our parent guidance org and go into the parent guidance mental

[00:25:33] health series and there is a plethora of different services available for parents there's links to webinars there's a library of resources for you know students that dealing with mental health or substance use disorders or co-recording disorders in addition we also perform our fentanyl awareness presentation so we collaborate with the sheriff's department the Williams Center who we work with closely.

[00:25:59] They're in the next line. They're a recovery center and a counseling center that provides mental health and substance use counseling for our families and our communities. But we also partner with the Williams Center, and we also partner with the Loudoun County Mental Health and Substance Abuse Services.

[00:26:17] And we do those presentations around the community pretty regularly. We also partner with the Song for Charlie, which is a nonprofit organization to raise people awareness around fentanyl prevention so that is a presentation where we have a presentation specific for parents for fentanyl awareness and then the following day we have and this is at the high school level we have a presentation for all of our students so we have them coming up I believe next week at Light Ridge High School. New partnerships to meet student needs we've recently

[00:26:52] partnered with the Serenity House they provide recovery support and counseling services for those students that are going they're receiving that are in recovery and coming out of you know either hospitalization stays or residential stays the Williams Center and wellness recovery we talked about them earlier there they are that the agency we partner with where our families and the Williams Center also provides they take Medicaid one of the few service providers that take Medicaid you know they'll work with any family regardless if they the work with families on sliding scales if you can't afford,

[00:27:31] or if they have insurance or not. The Family One, that is a mentoring service that we recently developed a Memorandum of Understanding with, and they have mentors that specifically go out in the community and provide opportunities for student engagement.

[00:27:46] So for a lot of those students that are not connected to their school or disengaged, schools will be able to do a referral, and those mentors will go out, connect with the family, and provide those mentoring services in the community for those students yes ma'am would the service would the person that the student that we work with earlier today have an opportunity to access any of

[00:28:26] these services that's a question I was asking Dana just it's lingering so I I would respond by saying that that student and any student similarly we situated to that as part of the response there's not only the sanction but there is the referral to the SAS and so the SAS then will meet with the student and assess whether or not there should be referrals to outside partnerships I presume that of course there would need to be parent permission for that and mr. Madison can probably fill in the blanks but typically some of

[00:29:06] these um services may take insurance may not take a family's insurance i don't know how the cost factors in so the family one we we have a mou with them and and they are uh fronted through our all of virginian funds that we received from last year from you know the governor's office so we receive money towards um absenteeism addressing chronic absenteeism and student engagement so that that is

paid for so a student if their referral is made you know there's you know family doesn't worry about insurance so most likely I

[00:29:44] would say I don't know what the student situation is I was here but we they try to work with all students if it's possible the youth and Family Resource Center that is a local government agency that we partner with they if if if they receive referral from the SAS or anyone from the unified mental health team or school administrator families could go in and walk in anytime and receive a free assessment will be assigned a case manager and a case manager will link them to services in the community they also provide respite care for families

[00:30:22] so families for students that may need a shelter placement the youth and family resource center is positioned in Leesburg and is connected to the shelter in the JDC so a family comes in and they need respite then they can provide that

[00:30:36] and make that happen as well thank you any questions or and and I would say again not particular to that child but all students who have these violations are referred to the SAS who does meet with the child who does make

[00:31:13] individualized recommendations and then we'll also provide some assistance in connecting families with those resources but they are voluntary so I can assure you that those connections are made okay okay so despite all those wonderful efforts at intervention prevention education and outreach we do sometimes unfortunately have instances where students violate our policy and regulation pertaining to substance use the code of Virginia

[00:31:47] section 22.1 - 277.08 does set forth expectations for how students who engage in specified violations will be managed by school divisions so when I say specified violations this code section pertains to students who bring to school controlled substances imitation controlled substances or marijuana and the code section goes on to set an expectation that any student who does

[00:32:22] that would be expelled but it also goes on to say that a school administrator the division superintendent or the division superintendent's designee and OSA the hearing officer and myself do represent the superintendent as his designee that our school administrators, specifically principals, and the hearing officer and myself, do have the ability to find special circumstances in any case such that we could determine that expulsion is not the appropriate sanction and we could determine a lesser sanction.

[00:33:01] And then finally, it goes on to say that nothing in this section shall be construed to require a student's expulsion. So that is the Code of Virginia. - Regarding our own policies and our own regulation, policy 8240, alcohol, drugs, tobacco, and electronic cigarettes does prohibit the possession, use, sale, or any other type of distribution, possession with the intent to sell or distribute, and being under the influence at school

[00:33:39] or at a school-sponsored activity of any of the substances that you see on the right-hand side. So any illegal drug, any controlled substance, some exceptions, of course, are made for a student's own prescription, alcohol, tobacco, any kind of medication, including over-the-counter medication, and any type of drug or tobacco paraphernalia, including vapes.

[00:34:04] We did do some pretty significant revisions to Regulation 8240. We started many, many months ago. It was many months in the making. was a very collaborative process.

[00:34:19] Of course, the policy defines terms and also defines what is prohibited. The regulation sets forth the sanctions for various kinds of violations. So we wanted to revise the regulation with the following goals in mind.

[00:34:37] First and foremost, student safety. Also, ensuring that student safety doesn't come at the cost of continuing to provide education and intervention services for students. We recognize those have to go hand in hand.

[00:34:52] We wanted to therefore balance intervention with accountability and we wanted to provide flexibility to our principals to respond to the most serious violations, in particular fentanyl.

[00:35:08] So in terms of the process, as I said, it was very collaborative. We did have meetings with school-based administrators that were attended by the entire OSA team. I believe Mr. Madison was present at the big meeting. I know that Jennifer Evans was present.

[00:35:23] Several meetings of the OSA team and Mr. Madison and Ms. Evans to really hammer out and revise and look at the regulation itself. We then conducted a focus group that included ten secondary principals, five middle and five high school principals, where we went through that regulation really almost line by line to get their feedback and make sure that the adjustments we were making made sense for them in the schools.

[00:35:55] We didn't include the elementary school principals here. Well, they were included in the general, the first meetings, but not in the focus group, really primarily because the vast majority of the violations that we see coming through OSA and those that occur are happening at the middle and the high school level.

[00:36:14] So that was why we focused on the secondary school principals. Once we had received their feedback, we then reviewed it thoroughly, again, almost line by line with the Department of School leadership, Dossel, and certainly it was reviewed by Cabinet and also reviewed by Division Council.

[00:36:34] The highlights, some of the changes that were made, first, the new regulation did provide for a two-year look back. So essentially, the previous regulation was silent to this, but the practice had been on the first day of school every year sort of the clock reset so when the regulations set forth your first violation this will happen your second violation this will happen your third violation

[00:37:08] this will happen in practice what was occurring is a student might have two three four five six 82 40 violations in a school year right up until June and then the first day of school would come and it would be back to zero, and we recognized that that was not the best approach. We also did not want to go way back to ancient history on a student and say, well, you know, four years ago you had a tobacco vape, so we tried to strike a balance how far back in the record should our

[00:37:44] administrators look to determine what violation is this really, right, because if you had five in June. And then August comes, it's not your first violation. And we settled on 24 months. So anytime there is an 8240 violation, the principal or assistant principal will look back 24 months and see how many violations occurred in those 24 months to determine are we at a first violation, a second violation, a third violation, et cetera. So that was a change. Another change

[00:38:18] was that the range of consequences that a student would receive except for a distribution, distribution, first offense, it's going to come forward when we have drugs being distributed at school.

[00:38:34] So that is an outlier. But essentially what was happening in practice with the former regulation was if there was a tobacco violation, you might have two tobacco violations in the same school year, And then a student would have an alcohol violation.

[00:38:51] And it was like, well, two tobaccos, but now this is your first time alcohol. And then there might be three alcohol violations. And then there was a THC violation. And that would be the first violation. Instead of saying, well, wait a minute. It's not that we want to respond with progressive services and progressive discipline for every single category of substance.

[00:39:14] But rather, a violation is a violation is a violation. So they look back the two years, and it doesn't matter if those violations were nicotine, marijuana, controlled substance, alcohol. They total those violations up in those preceding 24 months to determine what violation are we on now, and then how do we proceed in terms of the consequence.

[00:39:46] Another highlight is that, again, in the interest of providing intervention services and supports to our students, typically a violation related to over-the-counter medication, use or possession of one's own prescription medication, a tobacco violation, including a nicotine vape, an alcohol violation, or a drug paraphernalia violation will result in school-based discipline.

[00:40:15] Another change or revision was that typically, except for cases, again, involving drug distribution, a student's first violation of the policy within the 24 months would be responded to, again, with an in-school consequence and a substance use education class.

[00:40:40] At two or more violations, that's when the school would have the ability to suspend if they felt that was appropriate and to refer to OSA for further disciplinary action if they felt that was appropriate. However, offenses involving distribution must result in a 10-day suspension or referral to OSA to consider further disciplinary action.

[00:41:04] And then finally, the substance use class is now being not only offered, but required with every violation. And we clarified that the expectation would be that if the student is in an in-school restriction setting, that preferably we want to have that substance use education component provided to the student while they are in ISR, so that they're not then taken out of class again to get their substance use education component.

[00:41:44] What questions do you have? Thank you for that awesome presentation and the clarification for all that. I just had a question about hearsay. Like, you know, when you have kids and students in the same school that say something along the lines, well, so-and-so has possession of something or whatever, like marijuana or someone has vape, What would be the policy or what would be I guess the protocol in following up with that when kind of that conversation or word gets around in the high school and ultimately

[00:42:20] Reaches administration or the principal. So when the school administrator and that could be the principal the assistant principal the Dean is informed by let's say a student comes forward and or a teacher comes forward maybe a teacher heard students talking but essentially is told Bobby has seen Joey with marijuana.

[00:42:45] I saw Joey with marijuana at the bus stop this morning. Or I saw Joey with marijuana in the bathroom this morning. Whatever the case may be. What the protocol is, the school administrator has to investigate that. And they will speak to the student who's been accused.

[00:43:01] Part of that investigation is going to be, of course, to speak to that student, to speak to the student who is identified as the reporting student to speak to any other witnesses, to review camera evidence, if there is camera evidence, and assuming that the school administrator finds that tip to be credible, also would include a search of the student's possessions at school.

[00:43:26] And typically that would include, again, speaking with the student, letting the student know, I am going to have to search, for example, your backpack, your purse, take off your coat please, we need to look in your coat pockets, et cetera.

[00:43:41] They will explain why they're searching, what they're looking for. They will ask the student voluntarily to hand those items over. And the student also has the opportunity to say, yeah, I do have something in to provide that voluntarily. So essentially, the administrator is going to conduct a full investigation, gather whatever evidence there is to be gathered, that's statements, That's potentially video evidence.

[00:44:05] That's potentially evidence that was collected as the result of a search. Look at all of that and determine what was the violation. If the violation is, say, possession of marijuana, then, again, they're going to look at, you know, 24 months back, what number are we on?

[00:44:26] Is this a first violation, second violation, third violation, et cetera? and then the regulation will inform the administrator what the range of acceptable disciplinary responses are. Are there any other questions?

[00:44:43] If the student is, yes, may I? Absolutely. I'm sorry. If the student, I think Mr. Madison referenced that some education is given in the health and PE class, but if the student is a junior or a senior and is beyond taking the health and PE, is he or she pulled out of an academic class for the education?

[00:45:11] Well, if it's an 8240 violation, then they would be an ISR, so they would be pulled out. But if it's just education for, like, our substance use presentations, those presentations for 11th and 12th grade are optional, so they would have to request it.

[00:45:29] Like, that school would have to make that request to the SAS. And typically it's like our 12th grade presentation is more like a transition presentation because that's a huge transition point for that student, right? Going off to college. So it's substance use prevention, but also we cover things like hazing.

[00:45:48] Matter of fact, actually hazing now is in the legislation that we have to cover that in the 9th and 10th grade. So we do provide hazing presentation as well in our presentations, pretty much at the high school level. But I hope that I answer your question. Okay, all right.

[00:46:04] I just wondered if, you know, like some kids, their dependency becomes progressively progressive. And so they didn't get caught in ninth and tenth grade year, so they got caught in eleventh grade year or twelfth grade year.

[00:46:24] And I just wondered how that child was given some kind of education when generally they have all their class periods involved in an academic experience. so I'm good thank you thank you chair thank you chair just one last question if a parent comes

[00:47:04] forward and says something along the lines where they know someone else has sold any of these substances to my child right what would be the protocol for something like that would I understand you would follow an investigation ultimately you can't just blindly accept something like that

[00:47:21] But at the same time, if the child of that parent kind of was part of that interaction, for example, would they kind of, and let's say the person that sells the substances, however way, and it's proven that the person that sells that substances has been credible, the claim has been credible.

[00:47:44] What happens in terms of consequences as it relates to 80 to 40, especially to the child of that parent? So in a situation such as that, you have, essentially, it sounds like I presume that the seller sold to the child, to the child of the parent, the reporting parent at school.

[00:48:08] Okay. So you do have two students who have violated policy 8240 because you have the student who sold the drugs, who has willfully and deliberately sold drugs on school property. Money has changed hands. As such, that student must be suspended for 10 days and must be referred to OSA for consideration of further disciplinary action, and that disciplinary action could be a long-term suspension of up to 364 days.

[00:48:35] It could be a reassignment to an alternative setting or, in the worst-case scenario, a recommendation for expulsion. So that's the distributor. The student who purchased the marijuana at school has also violated the policy. It's also a willful and deliberate violation of the policy, and so they too are provided a consequence or a sanction in accordance with the regulation.

[00:49:03] Now because that student is the purchaser as opposed to the seller, if it's the first violation then it's three days of ISR and a substance use. If it's a second or subsequent violation for that student, maybe it's not the student's first 8240 violation in the last 24 months in that case the principal has a range going all the way from five days of ISR and a substance use education class all the way up to a referral to our office so I would think in a case like that where a family has come forward I presume that the parents child

[00:49:40] is also cooperative and is also honest with the school then I presume that in In most, if not all cases, the principal would take all of that into consideration and have a sanction probably on the lower end of the range as opposed to the higher end of the range.

[00:50:02] Any other questions? Thank you very much. We really appreciated the presentation, Mr. Madison. Seeing as we have completed all the business we had before us today, is there a motion to close the meeting?

[00:50:19] So moved. Second? Seconded. motion on the floor to close our meeting it's been appropriately moved and seconded all those in favor say aye aye aye seeing none opposed I will call the meeting closed thank you all for coming